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00002:01 PRESENT:

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MS. ALEXANDRA SOKOLOV

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Appeared on behalf of Plaintiff;

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MR. PEDRO VIENTO,

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Appeared on behalf of Defendant.

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ALSO PRESENT:

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MR. KEVIN DUNCAN, Videographer

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00003:01

I N D E X

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WITNESS:

04

MAXINE SCHLECT WOLF

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EXAMINATION BY:

PAGE

07

MS. SOKOLOV

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EXHIBITS:

DESCRIPTION

PAGE

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Exhibit 1

E-mail correspondence Bates  
labeled TLP0011 and TLP0012

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Exhibit 2

E-mail correspondence Bates  
labeled TLP0015 and TLP0016

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Exhibit 3

Sales receipt Bates labeled

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00:00:09.250 00004:01 THE VIDEOGRAPHER: Good afternoon. We are  
00:00:10.740 02 going on the video record at 1:47 p.m. Today's date  
00:00:15.240 03 is September 5th, 2019. This begins Media Unit 1 in  
00:00:20.250 04 the video recorded deposition of Maxine Wolf taken on  
00:00:23.210 05 behalf of the plaintiffs in the case matter of  
00:00:28.790 06 Cerdito, et al., versus Wolf Development filed in the  
00:00:31.290 07 United States District Court for the District of New  
00:00:34.561 08 Jersey.

00:00:34.880 09 This deposition is being held at the  
00:00:36.500 10 law offices of Halliwell and Phillips located in  
00:00:40.310 11 Hammington, New Jersey.

00:00:42.930 12 My name is Kevin Duncan, and I am a  
00:00:44.580 13 certified legal video specialist from the firm of  
00:00:47.250 14 Veritext Legal Solutions. The court reporter today  
00:00:49.750 15 is Ms. Theresa Lazzaro from the firm of Veritext  
00:00:53.040 16 Legal Solutions.

00:00:54.213 17 Will the court reporter please  
00:00:55.494 18 administer the oath?

00:00:58.338 19 (WHEREUPON, the witness was  
00:01:01.181 20 duly sworn.)

00:01:04.025 21 THE VIDEOGRAPHER: You may proceed.

00:01:04.506 22  
00:01:04.987 23  
00:01:05.468 24

00:01:05.949 00005:01 MAXINE SCHLECT WOLF,  
00:01:06.430 02 called as a witness herein, having been first duly  
00:01:06.911 03 sworn, was examined and testified as follows:

00:01:07.392 04 EXAMINATION

00:01:07.873 05 BY MS. SOKOLOV:

00:01:08.354 06 Q. Good afternoon. My name is Alexandra  
00:01:10.530 07 Sokolov, and I represent the Cerdito family in this  
00:01:13.120 08 case. Before we get started I just want to go  
00:01:16.350 09 through the ground rules of deposition to make sure  
00:01:18.430 10 that we're on the same page.

00:01:20.860 11 Could you please state your full  
00:01:22.030 12 name for the record?

00:01:23.540 13 A. Maxine Schlecht Wolf.

00:01:27.540 14 Q. And do you understand that you are under  
00:01:29.090 15 oath and that being under oath means you are sworn to  
00:01:32.250 16 tell the truth?

00:01:34.035 17 A. Yes.

00:01:34.630 18 Q. Have you ever had your deposition taken  
00:01:38.400 19 in the past?

00:01:39.120 20 A. No.

00:01:39.300 21 Q. You understand that your responses here  
00:01:41.660 22 have the same force as they would in a courtroom with  
00:01:43.800 23 a judge and a jury?

00:01:45.490 24 A. I do.

00:01:48.040 00006:01 Q. Is there any reason, such as being under  
00:01:50.340 02 unusual stress, a mental or physical condition, or  
00:01:53.760 03 being under the influence of any substance, that  
00:01:56.280 04 would prevent or limit you today from giving truthful  
00:01:59.060 05 answers to my questions?

00:02:02.531 06 A. No.

00:02:02.940 07 Q. There is nothing wrong with asking me to

00:02:04.430 08 repeat a question or explain a term if you don't  
00:02:06.700 09 understand my question. However, if you answer my  
00:02:09.700 10 question, I'm going to assume that you understood it.  
00:02:12.460 11 Do you understand this?  
00:02:13.760 12 A. Yes, I understand.  
00:02:15.990 13 Q. And if you need to take a break at any  
00:02:17.860 14 time, just tell me and we can take a break. Is that  
00:02:21.279 15 okay?  
00:02:21.590 16 A. That's fine.  
00:02:23.920 17 Q. Before your deposition did you review any  
00:02:26.360 18 documents in preparation?  
00:02:31.162 19 A. No.  
00:02:31.620 20 Q. Okay. What is your date of birth?  
00:02:33.720 21 A. October 13th, 1978.  
00:02:38.310 22 Q. Where were you born?  
00:02:39.730 23 A. Ulrich, New Jersey.  
00:02:41.890 24 Q. And what is your current address?  
00:02:44.530 00007:01 A. 588 Randolph in Hammington, New Jersey.  
00:02:49.480 02 Q. And how long have you lived there?  
00:02:51.510 03 A. Eight years.  
00:02:53.480 04 Q. Have you ever been arrested?  
00:02:56.183 05 A. No.  
00:02:56.500 06 Q. Have you ever been convicted of a crime?  
00:02:59.964 07 A. No.  
00:03:00.220 08 Q. Have you ever been involved in any other  
00:03:01.950 09 legal claims or lawsuits?  
00:03:06.000 10 A. No.  
00:03:06.450 11 Q. And what is your current occupation?  
00:03:09.230 12 A. I'm the president and CEO of Wolf  
00:03:11.860 13 Development, Inc.  
00:03:15.090 14 Q. When did you begin employment with Wolf  
00:03:17.570 15 Development?  
00:03:18.480 16 A. When I founded it.  
00:03:20.790 17 Q. Do you remember what year you founded it?  
00:03:25.550 18 A. Somewhere around 2008.  
00:03:28.500 19 Q. And when you first became associated with  
00:03:31.460 20 Wolf Development, what capacity was it in?  
00:03:34.610 21 A. I founded it. It's my company.  
00:03:38.410 22 Q. And what type of work does Wolf  
00:03:39.770 23 Development do? Can you give me examples of the type  
00:03:42.000 24 of projects you're involved in?  
00:03:43.330 00008:01 A. Sure. We specialize in acquiring  
00:03:48.690 02 underused properties I would say that aren't  
00:03:52.070 03 maximizing their potential. We turn them into  
00:03:54.400 04 something that is more appealing, interesting for the  
00:03:57.540 05 community. You might say we pave paradise and put up  
00:04:02.310 06 a different type of paradise.  
00:04:06.160 07 Q. Are you acquainted with the Cerdito  
00:04:07.840 08 siblings -- Brutus, Mallory, and Cassidy Cerdito --  
00:04:11.560 09 who reside in the Campbell-Walton corridor?  
00:04:16.120 10 A. Somewhat acquainted, yes.  
00:04:18.580 11 Q. What is your relationship with the  
00:04:20.140 12 Cerdito family?  
00:04:21.390 13 A. I attempted to work with them to acquire  
00:04:24.600 14 their property for a new development.  
00:04:27.330 15 Q. Have you worked with them before this?  
00:04:30.458 16 A. No.  
00:04:30.730 17 Q. And how did you attempt to contact them?  
00:04:33.170 18 A. I reached out via e-mail to make a  
00:04:34.980 19 generous offer on properties they were not  
00:04:38.324 20 maximizing.  
00:04:39.610 21 Q. And how did you obtain the Cerditos'  
00:04:41.180 22 e-mail addresses?  
00:04:42.660 23 A. They were from a promotional marketing  
00:04:45.420 24 database we had completely legal access to.

00:04:50.230 00009:01 Q. Did you ever meet them in person?  
00:04:53.140 02 A. No, I don't believe I did.  
00:04:55.810 03 Q. So you've never been to their homes?  
00:04:57.850 04 A. I did. I stopped by, but no one answered  
00:05:00.450 05 the door.  
00:05:02.680 06 MS. SOKOLOV: I'd like to enter Exhibit 1  
00:05:04.940 07 into evidence, Bates No. TLP0011. This is an e-mail  
00:05:11.140 08 conversation between Ms. Wolf and Brutus Cerdito that  
00:05:14.650 09 took place on March 14th and March 15th, 2006 [sic].  
00:05:16.860 10 BY MS. SOKOLOV:  
00:05:19.070 11 Q. Ms. Wolf, here is a copy of the e-mail.  
00:05:23.140 12 Do you recognize it?  
00:05:30.083 13 A. Yes.  
00:05:31.570 14 Q. Ms. Wolf, can you please read the top  
00:05:33.460 15 paragraph on the page starting "I have some friends  
00:05:37.430 16 in the building inspector's office" for me?  
00:05:41.150 17 A. "I have some friends in the building  
00:05:42.680 18 inspector's office that would be very interested in  
00:05:46.080 19 how you've constructed this home with shoddy  
00:05:48.080 20 materials and no permits. And it would be a shame if  
00:05:52.450 21 it got blown down in the storm that's being forecast  
00:05:55.390 22 for overnight tonight."  
00:05:58.650 23 Q. And what was your intent in writing that  
00:06:02.334 24 e-mail?  
00:06:02.590 00010:01 A. I wanted to make sure that Mr. Cerdito  
00:06:05.670 02 was aware of the dire circumstances he placed himself  
00:06:09.870 03 in by failing to keep his house up.  
00:06:13.320 04 Q. Were you threatening Mr. Cerdito with  
00:06:14.970 05 consequences if he didn't sell his property to you?  
00:06:17.760 06 A. Absolutely not. If he felt threatened,  
00:06:19.510 07 it's his own fault for not keeping up his house.  
00:06:22.380 08 Q. What is your opinion of people who live  
00:06:23.990 09 in substandard housing conditions?  
00:06:28.560 10 A. Some say that the standard you live in  
00:06:30.860 11 reflects the standard of your life.  
00:06:33.980 12 Q. And you took special pleasure in trying  
00:06:35.670 13 to remove the Cerdito siblings from their homes;  
00:06:38.220 14 isn't that right, Mrs. Wolf?  
00:06:39.530 15 A. I wouldn't say that exactly, no.  
00:06:41.570 16 Q. You think they don't deserve to live  
00:06:43.350 17 there; isn't that correct?  
00:06:44.830 18 MR. VIENTO: Objection. Harassment.  
00:06:45.600 19 BY MS. SOKOLOV:  
00:06:46.370 20 Q. Okay. I'll move on.  
00:06:50.190 21 Ms. Wolf, what made you so  
00:06:51.590 22 interested in acquiring the three properties at 915,  
00:06:55.120 23 917, and 919 Campbell?  
00:06:58.580 24 A. It's my job. It's my passion. I'm -- I  
00:07:02.900 00011:01 guess I'm always on the hunt for something new to  
00:07:05.439 02 develop.  
00:07:06.010 03 Q. But you had a special interest in  
00:07:07.800 04 acquiring these three properties; isn't that right?  
00:07:10.400 05 A. Yes. They're very appealing and in a  
00:07:12.660 06 great location.  
00:07:14.640 07 Q. Did you have any plans for these  
00:07:17.808 08 properties?  
00:07:18.960 09 A. My mind is always filled with plans for  
00:07:22.172 10 properties.  
00:07:23.090 11 Q. Ms. Wolf, are you aware of the proposal  
00:07:24.950 12 for a new barbecue restaurant on the properties owned  
00:07:27.510 13 by the Cerdito siblings?  
00:07:28.960 14 A. Oh, yes. Yeah, I've heard rumblings of  
00:07:31.943 15 this.  
00:07:32.370 16 Q. But did you have specific plans to  
00:07:34.750 17 participate in the development of the barbecue

00:07:37.306 18 restaurant?

00:07:37.860 19 A. I wouldn't say I had specific plans, but

00:07:40.760 20 all ideas are on the table, sure.

00:07:43.920 21 MS. SOKOLOV: I'd like to enter Exhibit 2

00:07:45.550 22 into evidence, Bates No. TLP0015. This is a series

00:07:52.540 23 of e-mails between Ms. Wolf and two colleagues at

00:07:56.270 24 Wolf Development, Hunter Requin and Tanith -- Tanith

00:08:01.722 00012:01 Drake.

00:08:02.141 02 BY MS. SOKOLOV:

00:08:02.560 03 Q. Ms. Wolf, what is your relationship with

00:08:05.129 04 Mr. Requin?

00:08:05.660 05 A. Hunter has been my vice president of

00:08:07.280 06 property management for the past five years.

00:08:09.910 07 Q. And what is your relationship with

00:08:11.724 08 Ms. Drake?

00:08:12.230 09 A. She is our manager for investments and

00:08:16.748 10 acquisitions.

00:08:18.360 11 Q. Ms. Wolf, do you recognize these e-mails?

00:08:24.070 12 A. I do.

00:08:27.200 13 Q. Would you please read the initial e-mail

00:08:28.970 14 from March 12th, 2016? You'll find that on Page 2 of

00:08:33.030 15 this printout.

00:08:36.070 16 A. "I may have identified a prime location

00:08:38.260 17 to build our barbecue joint. When you can, go drive

00:08:43.020 18 by 915 and 917 Campbell. The current structures are

00:08:47.320 19 sorely in need of big repairs, so it would be much

00:08:50.070 20 easier to buy them out and redevelop."

00:08:54.120 21 Q. So based on this e-mail it sounds like

00:08:56.270 22 you were highly motivated to build the BBQ restaurant

00:08:58.920 23 on these properties; isn't that true?

00:09:01.720 24 A. I guess you could say that.

00:09:04.700 00013:01 Q. Ms. Wolf, are you aware that the two

00:09:06.250 02 properties belonging to Mallory and Brutus Cerdito at

00:09:09.030 03 915 and 917 Campbell were both destroyed soon after

00:09:13.250 04 you reached out with an offer to purchase them?

00:09:15.990 05 A. I do remember. There were terrible

00:09:17.690 06 storms that night. It was so awful. I lost all my

00:09:21.020 07 rose bushes. It was terrible.

00:09:24.470 08 Q. Are the storms you're referencing the

00:09:25.710 09 storms of March 15th and March 16th, 2016?

00:09:31.210 10 A. I -- sure, that sounds right, yeah.

00:09:33.120 11 Q. And were you in Hammington on either of

00:09:35.130 12 those nights in 2016?

00:09:36.930 13 A. I believe so, yes, but I likely slept

00:09:39.350 14 through the storms.

00:09:41.350 15 Q. You say you slept through the storms on

00:09:42.990 16 both of the nights?

00:09:44.290 17 A. Like a baby, yeah.

00:09:45.850 18 Q. And during what hours of the evening were

00:09:47.790 19 you asleep?

00:09:49.300 20 A. Most likely 9:00 p.m. to 5:00 a.m. Early

00:09:52.380 21 to bed, early to rise, that's me.

00:09:55.960 22 Q. So you were in your home when the storms

00:09:57.750 23 came through Hammington in the late evening of both

00:10:00.640 24 March 15th and March 16th?

00:10:02.640 00014:01 MR. VIENTO: Objection. Asked and answered.

00:10:03.795 02 BY MS. SOKOLOV:

00:10:04.950 03 Q. Okay. Moving on, Ms. Wolf were you

00:10:08.100 04 actively involved in the destruction of properties at

00:10:11.110 05 915 and 917 Campbell?

00:10:14.100 06 A. Absolutely not. It was an act of nature.

00:10:18.570 07 MS. SOKOLOV: I'd like to enter Exhibit 3

00:10:20.350 08 into evidence, Bates No. TLP0017. This is a sales

00:10:25.750 09 receipt from a company named Fans R Us.

00:10:27.415 10 BY MS. SOKOLOV:

00:10:29.080 11 Q. Ms. Wolf, I'm going to hand you a copy of  
00:10:30.630 12 this receipt. Can you please read me the description  
00:10:34.190 13 of what was purchased?  
00:10:36.430 14 A. This is for a super industrial-grade wind  
00:10:40.791 15 machine.  
00:10:41.700 16 Q. And can you please tell me who was listed  
00:10:43.540 17 as the purchaser under "Sold To"?  
00:10:45.910 18 A. Wolf Development, Inc.  
00:10:48.410 19 Q. Thank you. And can you please read the  
00:10:50.040 20 date for me?  
00:10:51.350 21 A. March 15th, 2016.  
00:10:54.630 22 Q. Ms. Wolf, did you purchase this wind  
00:10:56.370 23 machine on March 15th, 2016?  
00:10:58.430 24 A. Of course I did.  
00:11:00.040 00015:01 Q. And what was the reason you purchased  
00:11:01.750 02 such a device?  
00:11:03.140 03 A. You might be aware my company has been  
00:11:05.330 04 finishing up work over the last several years, lots  
00:11:08.060 05 of current projects simultaneously going on. We were  
00:11:11.540 06 having trouble with the paint that we'd purchased  
00:11:13.840 07 seems to not want to dry because of the humidity. I  
00:11:16.850 08 was trying to speed things up with this machine.  
00:11:19.800 09 Q. So the purpose of this industrial-grade  
00:11:22.050 10 wind machine was to dry paint?  
00:11:23.990 11 A. I don't know if it's its expressed  
00:11:25.890 12 purpose, but I was willing to try anything. Okay?  
00:11:29.490 13 Q. Ms. Wolf, are you aware that the machine  
00:11:31.530 14 of this size could easily be used to destroy a home  
00:11:34.700 15 built out of substandard materials, materials like  
00:11:37.780 16 recycled hay or industrial compressed wood shavings?  
00:11:42.210 17 A. I suppose anything is possible.  
00:11:45.150 18 Q. And do you think it's possible that a  
00:11:46.510 19 machine like this could have been used to destroy the  
00:11:49.300 20 homes of Mallory and Brutus Cerdito?  
00:11:51.290 21 A. This machine was used for drying paint.  
00:11:53.790 22 I thought we already established that the storms are  
00:11:56.270 23 what caused the two homes to blow over.  
00:11:59.190 24 Q. I'd like to return to Exhibit 2 again,  
00:12:01.440 00016:01 the e-mail conversation between you and your  
00:12:03.570 02 colleagues, Mr. Requin and Ms. Drake.  
00:12:05.409 03 Ms. Wolf, can you please take a look  
00:12:07.430 04 again at the printout and the read the first  
00:12:09.610 05 paragraph of the e-mail you sent to your colleague on  
00:12:12.100 06 March 17th, 2016 starting with the words "Our luck"?  
00:12:17.620 07 A. "Our luck has been unbelievable. Last  
00:12:20.710 08 night's second unnatural windstorm has blown down the  
00:12:24.590 09 wooden house at 917. We must work now to secure for  
00:12:28.750 10 the 919 lot. Our barbecue joint will be the  
00:12:32.010 11 quintessential hipster hangout once we get the full  
00:12:35.630 12 patio in place."  
00:12:37.890 13 Q. Ms. Wolf, what did you mean when you used  
00:12:40.010 14 the word "unnatural" to describe the storm?  
00:12:42.790 15 A. It was just a really strong storm,  
00:12:45.470 16 nothing more than that.  
00:12:47.730 17 Q. In your e-mail you mentioned your  
00:12:49.130 18 unbelievable luck to your colleagues despite the  
00:12:51.860 19 tragic destruction that occurred to the Cerditos.  
00:12:54.290 20 Don't you think it's quite a coincidence that the  
00:12:56.210 21 homes were blown down on the two properties you were  
00:12:59.330 22 trying to acquire and that this happened within less  
00:13:01.850 23 than 48 hours of your purchase of a super  
00:13:04.350 24 industrial-grade wind machine that was capable of  
00:13:07.030 00017:01 causing that exact kind of damage?  
00:13:09.180 02 A. All I know is I had a lot of wet paint to  
00:13:11.740 03 dry. And as for my luck, I've always been lucky.

00:13:17.750 04 Q. Okay. Ms. Wolf, I'm going to ask you  
00:13:19.170 05 directly: Did you or anyone on your behalf use an  
00:13:21.900 06 industrial-strength wind machine to cause destruction  
00:13:24.690 07 to the homes of Mallory and Brutus Cerdito?  
00:13:27.230 08 A. No, absolutely not. Those homes were in  
00:13:29.640 09 such bad shape that all anyone had to do is walk by,  
00:13:33.230 10 huff and pluff -- puff, and they would blow them  
00:13:37.946 11 right in.  
00:13:38.820 12 MS. SOKOLOV: Okay. I think I have all my  
00:13:40.150 13 answers. No further questions.  
00:13:44.130 14 THE VIDEOGRAPHER: We are going off the video  
00:13:44.970 15 record at 2:00 o'clock p.m. and concludes today's  
00:13:47.400 16 testimony given by Ms. Maxine Wolf. Master media  
00:13:50.960 17 will be retained by Veritext Legal Solutions. Thank  
00:13:53.290 18 you all. Have a good day.  
19 (WHEREUPON, the deposition was  
20 concluded at 2:00 p.m.)  
21  
22  
23  
24

00018:01 CERTIFICATE  
02 OF  
03 CERTIFIED SHORTHAND REPORTER  
04

05 I, THERESA M. LAZZARO, a Certified  
06 Shorthand Reporter of the State of Illinois,  
07 CSR No. 84-004629, do hereby certify that I  
08 stenographically reported the proceedings had at the  
09 MOCK DEPOSITION aforesaid, and that the foregoing  
10 transcript is a true and accurate record of the  
11 proceedings had therein.

12 IN WITNESS WHEREOF, I do hereunto set my  
13 hand at Chicago, Illinois, this 16th day of September  
14 2019.

15  
16 <%1731,Signature%>  
17 THERESA M. LAZZARO, CSR  
18 CSR License No. 84-004629  
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